

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: McKenzie Dean	Team: Squad #16	CCRB Case #: 202106573	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/29/2021 11:30 AM	Location of Incident: 122nd Precinct Stationhouse	18 Mo. SOL 4/29/2023	Precinct: 122		
Date/Time CV Reported Fri, 10/29/2021 12:25 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 10/29/2021 12:25 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Matthew Shaw	05609	946241	122 PCT
2. Officers			
3. PO Joseph Mirabello	01552	933999	122 PCT
4. SGT Lara Cadogan	01403	951995	122 PCT
5. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Vincent Mandracchia	01559	960860	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Matthew Shaw	Abuse: Sergeant Matthew Shaw failed to provide § 87(2)(b) with a business card.	A . Substantiated
B . Officers	Abuse: Officers interfered with § 87(2)(b)'s use of a recording device.	B . Exonerated
C . PO Joseph Mirabello	Abuse: Police Officer Joseph Mirabello interfered with § 87(2)(b)'s use of a recording device.	C . Exonerated
D . PO Joseph Mirabello	Abuse: Police Officer Joseph Mirabello threatened to arrest § 87(2)(b)	D . Unsubstantiated
E . SGT Lara Cadogan	Abuse: Sergeant Lara Cadogan threatened to arrest § 87(2)(b)	E . Miscellaneous - Subject Retired
F . An officer	Abuse: An officer threatened to arrest § 87(2)(b)	F . Unfounded

Case Summary

On October 29, 2021, § 87(2)(b) filed this complaint with the CCRB online. On October 29, 2021, at approximately 11:30 AM, § 87(2)(b) went to the 122nd Precinct stationhouse in Staten Island to inquire about a police report associated with an unrelated incident. § 87(2)(b) requested a business card from Sgt. Matthew Shaw of the 122nd Precinct, and he failed to provide one (**Allegation A: Abuse of Authority, Substantiated**). § 87(2)(b) attempted to take a photo of Sgt. Shaw. Officers, including PO Joseph Mirabello of the 122nd Precinct told § 87(2)(b) that he could not record inside the stationhouse (**Allegation B and C: Abuse of Authority, Exonerated**). PO Joseph Mirabello and Sgt. Lara Cadogan, also of the 122nd Precinct, allegedly told § 87(2)(b) that he would be arrested if he did not leave the stationhouse (**Allegation D: Abuse of Authority, Unsubstantiated**) (**Allegation E: Abuse of Authority, Miscellaneous – Subject Retired**). § 87(2)(b) exited the building and an unidentified officer allegedly told him, “If you come back up here, we’re going to arrest you” (**Allegation F: Abuse of Authority, Unfounded**). No civilians were arrested or summonsed.

§ 87(2)(g)

BWC footage was received from the cameras of PO Vincent Mandracchia, PO Mirabello, and Sgt. Cadogan (**BR 01-03**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Matthew Shaw failed to provide § 87(2)(b) with a business card.

It is undisputed that § 87(2)(b) went to the 122nd Precinct stationhouse to speak with an officer about amending a charge on a police report associated with a prior incident. § 87(2)(b) requested a business card from Sgt. Shaw, who was on the phone behind the front desk, and Sgt. Shaw did not provide one. § 87(2)(b) attempted to take photo of Sgt. Shaw and officers told him he could not record inside the stationhouse. § 87(2)(b) left the building.

§ 87(2)(b) (**BR 05**) stated he asked Sgt. Shaw for his business card and Sgt. Shaw pointed to his shield and name plate. § 87(2)(b) told Sgt. Shaw that he would just take a picture of Sgt. Shaw’s information and began removing his phone from his pants pocket. Simultaneously, approximately four or five officers rushed towards § 87(2)(b). The officers told § 87(2)(b) that he could not record or take pictures in a government facility and said, “Get out.”

Sgt. Shaw (**BR 08**) stated that when he first interacted with § 87(2)(b) he identified himself as Sgt. Shaw. § 87(2)(b) asked for Sgt. Shaw’s business card, and Sgt. Shaw told him that he did not have one on him, but he would get him one after he finished his phone call. Approximately two minutes later, as Sgt. Shaw was still on the phone, he heard § 87(2)(b) yelling as he exited the stationhouse. Sgt. Shaw stated that § 87(2)(b) left the stationhouse before he had a chance to provide a business card.

PO Mirabello (**BR 09**) and PO Mandracchia (**BR 10**) did not witness § 87(2)(b) request a business card from Sgt. Shaw.

PO Mirabello’s BWC footage (**BR 02**) is the only video that captures § 87(2)(b)’s interaction with Sgt. Shaw at the desk, however the audio component of the video does not begin until § 87(2)(b) is already outside the stationhouse. At 01:05 of PO Mirabello’s footage, Sgt. Shaw comes to the entrance of the stationhouse. § 87(2)(b) is speaking on the phone while standing on the sidewalk in front of the building. Sgt. Shaw holds the door open as PO Mirabello walks inside. PO Mirabello returns outside shortly after. At 03:50 into the footage, Sgt. Shaw comes to the stationhouse entrance a second time and tells PO Mirabello and PO Mandracchia to come inside.

NYC Administrative Code 14-174 (BR 06) states an officer shall offer a business card to any person requesting identifying information or provide such information verbally to such person and allow such person sufficient time to record such information when such officer does not have

an adequate number of pre-printed business cards or hand-written cards on his or her person at the time of such law enforcement activity.

§ 87(2)(g)

. Therefore, it is recommended that
Allegation A is Substantiated.

Allegation (B) Abuse of Authority: Officers interfered with § 87(2)(b)'s use of a recording device.

Allegation (C) Abuse of Authority: Police Officer Joseph Mirabello interfered with § 87(2)(b)'s use of a recording device.

It is undisputed that § 87(2)(b) attempted to take a photo with his cell phone inside the stationhouse and officers, including PO Mirabello, told § 87(2)(b) that he could not record inside the facility.

§ 87(2)(b) stated that when the officers told him that he could not record, they said, “Get out” and he began walking out of the stationhouse. As § 87(2)(b) was leaving, he continued attempting to record the officers.

PO Mirabello stated that aside from himself, a few officers told § 87(2)(b) he could not record inside the stationhouse. PO Mirabello did not know which officers told § 87(2)(b) that he could not record. PO Mirabello stated that recording inside the stationhouse was not allowed. PO Mirabello stated that he could not cite the crime for which a person could be arrested if they were recording inside the stationhouse, however he said this would be a summonsable offense at the least.

PO Mandracchia stated he overheard officers tell § 87(2)(b) that he could not record inside the stationhouse, but he did not recall which officers made this statement. PO Mandracchia did not tell § 87(2)(b) he could not record while § 87(2)(b) inside of the stationhouse, however he informed § 87(2)(b) of this while they were outside. PO Mandracchia stated that there are signs throughout the precinct saying that recording is prohibited, which is a department policy.

Sgt. Shaw stated that he was on the phone at the desk when § 87(2)(b) began yelling and leaving the stationhouse. Sgt. Shaw did not observe any officers interact with § 87(2)(b). After the incident, two officers informed Sgt. Shaw that § 87(2)(b) was recording inside the stationhouse, and they instructed him to stop. Sgt. Shaw stated that recording inside the stationhouse was unlawful.

From 02:00 to 03:00 of PO Mirabello’s BWC footage (**BR 02**), while outside the building, PO Mirabello tells § 87(2)(b) multiple times that he cannot record in a public facility. BWC footage of the incident does not depict any other officers telling § 87(2)(b) he could not record, however the audio components of all the videos do not capture the entirety of § 87(2)(b)’s interactions with officers inside the stationhouse.

Patrol Guide Procedure 203-29 (BR 07) states that members of the public are not allowed to photograph and/or record police activity within Department facilities. Members of the service may order any member of the public who is photographing or recording within Department facilities to stop such activity. If such person refuses to stop, they then should be ordered to leave the premises.

§ 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegations B and C are Exonerated.**

Allegation (D) Abuse of Authority: Police Officer Joseph Mirabello threatened to arrest

§ 87(2)(b)

Allegation (E) Abuse of Authority: Sergeant Lara Cadogan threatened to arrest

§ 87(2)(b)

Allegation (F) Abuse of Authority: An officer threatened to arrest

§ 87(2)(b)

It is undisputed that after the officers told § 87(2)(b) he could not record inside the stationhouse, § 87(2)(b) left, and they followed him outside.

§ 87(2)(b) stated that while he was inside the vestibule of the stationhouse entrance, PO Mirabello told him that he would be arrested if he did not leave. PO Mirabello did not tell § 87(2)(b) what he would be arrested for. At some point, Sgt. Cadogan also told § 87(2)(b) that if he did not leave, then he would be arrested. § 87(2)(b) left the stationhouse. Once § 87(2)(b) was outside, an unidentified officer, whom § 87(2)(b) did not describe, told him, “If you come back up here, we’re going to arrest you.”

PO Mirabello did not recall threatening to arrest § 87(2)(b) and he did not know if any other officers did so. PO Mirabello specifically did not know if he or any other officer told § 87(2)(b) that if he did not leave or if he came back, then he would get arrested. PO Mirabello did not have any recollection of telling § 87(2)(b) that if he did not stop recording, then he would be arrested for criminal trespass, and he did not know if any other officers made this statement. PO Mirabello initially stated that § 87(2)(b) was asked to leave the stationhouse numerous times and he initially did not comply. PO Mirabello did not recall who asked § 87(2)(b) to leave. Upon viewing 01:59 to 02:14 of his own BWC footage (**BR 02**), PO Mirabello amended his testimony and stated that he did not have an independent recollection of any officers, including himself, instructing § 87(2)(b) to leave the stationhouse at any point during the incident.

PO Mandracchia denied telling § 87(2)(b) that he could be arrested but stated that if § 87(2)(b) had remained inside the stationhouse after being ordered to leave, he could have been arrested for trespassing. PO Mandracchia witnessed PO Mirabello and a sergeant, whom PO Mandracchia could not identify, escort § 87(2)(b) out of the stationhouse. PO Mandracchia did not know specific details of the interaction between § 87(2)(b) and PO Mirabello.

Sgt. Shaw stated he did not observe any officers interact with § 87(2)(b). After the incident, two officers, whose names Sgt. Shaw did not know, told Sgt. Shaw that they asked § 87(2)(b) to stop recording and told him that if he refused to stop recording or refused to leave the stationhouse, then he could be arrested for criminal trespass. The officers explained that after hearing that, § 87(2)(b) stopped recording and left.

BWC footage of the incident does not depict an officer threatening to arrest § 87(2)(b) or telling him to leave while he is inside the stationhouse at any point. 00:40 of PO Mirabello’s BWC footage (**BR 02**) depicts PO Mirabello’s interaction with § 87(2)(b) in the vestibule, however, the audio component of the video is not active until 01:00. 01:00 to the end of PO Mirabello’s footage depicts the entirety of § 87(2)(b)’s interaction with the officers once he is outside the stationhouse including audio and an officer does not tell § 87(2)(b) “If you come back up here, we’re going to arrest you” at any point. 00:08 to 00:30 of Sgt. Cadogan’s BWC footage (**BR 03**) captures her entire interaction with § 87(2)(b) with audio and does not depict her telling him that if he did not leave, then he would be arrested.

Patrol Guide Procedure 203-29 (BR 07) states that if a member of public is photographing or recording within Department facilities and refuses to stop such activity after being instructed to do so by a member of service, they should be ordered to leave the premises. If such person refuses to leave the premises, members of the service may take proper enforcement action under the trespass statutes (i.e., Penal Law sections 140.05 and 140.10).

A request to the NYPD Department Advocates Office for dates of service for Sgt. Cadogan (BR 12) showed that she retired on July 12, 2022, and thus the investigation was unable to obtain her statement.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** is **Unsubstantiated**.

Given that Sgt. Cadogan is no longer an active member of service, it is recommended that **Allegation E** be closed as **Miscellaneous – Subject Retired**.

§ 87(2)(g)

. Therefore, it is recommended that **Allegation F** is **Unfounded**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 11).
- Sgt. Shaw has been a member-of-service for 14 years and has been a subject in seven CCRB complaints and 23 allegations, six of which were substantiated.
 - 201710449 involved a substantiated allegation of vehicle search against Sgt. Shaw. The Board recommended Charges and the NYPD imposed a forfeiture of two vacation days.
 - 201702888 involved substantiated allegations of frisk (twice), search (twice), and stop. The Board recommended Command Discipline B and the NYPD imposed Formalized Training.
 - § 87(2)(g)
- PO Mirabello has been a member of service for 18 years and has been a subject in one CCRB complaint and four allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Cadogan's tenure was unavailable because she is no longer an active member of service. Sgt. Cadogan has been a subject in three CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of October 5, 2022, a Notice of Claim had not been filed regarding this incident (BR 13).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad: 16

Investigator:	<u>Inv. Dean</u>	<u>Inv. Dean</u>	<u>10/12/22</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>10/13/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date